



Appeal Decision

Site visit made on 18 August 2026

by **P Barton BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 07 September 2026

Appeal Ref: 6010165

The Ferns, 6 Broc Hill Way, Brocton, Stafford, Staffordshire ST17 0UB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Dave Owen against the decision of Stafford Borough Council.
 - The application Ref is 25/41298/FUL.
 - The development proposed is described as “proposing to remove existing stables with more appropriate agricultural building to be sited on existing concrete pad for housing tractors and various other equipment for land maintenance”.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. The policy emphasis of the parts of the Framework most relevant to this appeal have not changed. As a result, I have not sought comments on the new version of the Framework, and I am satisfied that no party's interests have been prejudiced by taking this approach.

Main Issues

3. The main issues are:
 - whether the proposed development would be inappropriate development in the Green Belt having regard to the Framework and any relevant development plan policies; and
 - whether other considerations clearly outweigh the harm to the Green Belt and any other harm as to amount to very special circumstances.

Reasons

Whether inappropriate development in the Green Belt

4. The Framework identifies that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The essential features of Green Belts are their openness and their permanence. The Framework states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.
5. Whilst not contained within the decision notice, the officer report refers to Policy SP7 of The Plan for Stafford Borough 2011-2031 (PSB), which includes a requirement for new development within the Green Belt to be consistent with

national policies. I have had regard to it insofar as it is consistent with the latest version of the Framework.

6. Development within the Green Belt is inappropriate unless it falls within one of the exceptions given in policy GB7 of the Framework. No exceptions under the previous version of the Framework in support of the appeal scheme have been presented.
7. Located to a corner of a broadly rectangular-shaped parcel of land in the Green Belt, which consists primarily of grass, the proposed building would replace an existing stables building that I saw is predominantly being used for the storage of logs. Whilst the surrounding land contains many trees with some overhanging into the site, and other trees were within the grounds around the house, there were a limited number of trees within the rectangular-shaped parcel of land. I also observed pieces of equipment, including modest-sized ride-on mowers, within this parcel of land.
8. Although the proposed building is intended to be used for the storage of land management and horticultural equipment, the appellant has stated that it is not intended to facilitate a commercial agricultural enterprise. On the basis of the evidence before me and from my observations, the proposal would be associated with the ongoing management and maintenance of privately owned land. There is no compelling case that the activities are of a scale and nature that it is for agriculture, horticulture and forestry, or solely for nature conservation, restoration and/or enhancement. Therefore, the proposed building would not meet the exception given in policy GB7 (1)(a) of the Framework.
9. Policy GB7 (1)(b) of the Framework would also not be met as the replacement building would not be in the same use and would be materially larger than the one it replaces.
10. As the proposed building would be sited on an existing concrete slab, for the purposes of my assessment, I have considered this to be previously developed land (PDL). Policy GB7 (1)(e) is relevant and relates to the redevelopment of PDL, which would not cause substantial harm to the openness of the Green Belt. In considering the concept of openness, the courts have found that it broadly has visual and spatial dimensions.
11. There would be limited harm to the visual openness of the Green Belt due to the presence of dense vegetation surrounding the site and changes in ground levels resulting in the building sitting within a dip in the landscape. However, the increase in the quantum of development by virtue of the substantially greater footprint and height of the proposed building compared to the existing stables building would result in significant harm to the spatial openness of the Green Belt. Taking all these factors together the appeal building would have both spatial and visual impacts, which would cause substantial harm to the openness of the Green Belt. Consequently, it would not comply with Policy GB7 (1)(e) of the Framework.
12. Furthermore, based on the evidence before me, none of the other exceptions set out in policy GB7 of the Framework apply to the appeal building.
13. In terms of the proposed permeable paving system between the proposed building and an existing access, due to the nature and appearance of the surface it would not result in an area of urban-style hardstanding encroaching into the countryside.

Consequently, this aspect of the appeal scheme would meet Policy GB7 (1)(f)(i) which includes engineering operations, as the impact on the openness of the Green Belt is minimised, and there would not be a significant conflict with the Green Belt purposes.

14. In conclusion, the proposed building would not accord with any of the exceptions contained in policy GB7 of the Framework and is therefore inappropriate development in the Green Belt in terms of the Framework and PSB Policy SP7.

Other considerations

15. The need to consolidate and secure existing externally stored machinery, and replace an existing building, as well as the associated up-keep of the appeal site do represent benefits in favour of the appeal scheme. I afford them moderate weight.
16. The appeal site is within the Cannock Chase National Landscape (CCNL). Section 85 of the Countryside and Rights of Way Act 2000 (as amended) requires that regard be had to the purposes of conserving and enhancing the natural beauty of National Landscapes. There is also a duty under Section 245 of the Levelling-up and Regeneration Act 2023 to seek to further the purpose of conserving and enhancing the natural beauty of these areas. These purposes also include increasing the understanding and enjoyment by the public of the special qualities of the National Landscapes. The Council has not raised an objection to the proposal's impact on the CCNL, and from my own observations, I see no reason to reach a different conclusion. A lack of harm in this regard has a neutral impact on the planning balance.
17. Although the appeal site also falls within 15km of the Cannock Chase Special Area of Conservation (SAC), the Council indicates that as the proposal would not create a new residential unit, holiday accommodation or visitor attraction, there would be no adverse impacts resulting from increased recreational pressure. As I have found the appeal scheme would be unacceptable for other reasons, it is not necessary for me to consider whether there would be any likely significant effect on the integrity of the SAC or undertake an Appropriate Assessment. If I were to find the proposal acceptable in this regard, a lack of harm would be a neutral factor.
18. A lack of harm or policy compliance with regard to, amongst other things, the living conditions of occupiers of neighbouring properties, highway safety, ecology and trees are neutral considerations that weigh neither for nor against the proposal.
19. The appellant refers to positive discussions with the original case officer, that the application was initially recommended for approval and that the Council do not provide formal pre-application advice for proposals of this nature. I am mindful that the authorising officer is not duty bound to follow the advice of the case officer. Therefore, these matters do not lead me away from my findings and I have had regard solely to the planning merits of the proposal.

Green Belt Balance

20. Policy GB6 of the Framework is clear that substantial weight should be given to the harm to the Green Belt, including harm to its openness. I have found that there

would be harm to the Green Belt by reason of the proposal's inappropriateness and its effect on openness.

21. The Framework states that the potential harm to the Green Belt by reason of inappropriateness and any other harm resulting from the development must be clearly outweighed by other considerations for permission to be granted. The other considerations in this case, as detailed above, do not have sufficient cumulative weight to clearly outweigh the harm to the Green Belt and any other harm. As such, the very special circumstances necessary to justify this development do not exist. This would be contrary to the Framework and PSB Policy SP7. Moreover, for this reason, policy S5 of the Framework is not engaged.

Conclusion

22. The proposal conflicts with the development plan as a whole and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal is dismissed.

P Barton

INSPECTOR